

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1243

Introduced by Murman, 38; Clements, 2; Holdcroft, 36; Lippincott, 34.

Read first time January 21, 2026

Committee:

- 1 A BILL FOR AN ACT relating to education; to amend section 79-2,136,
- 2 Revised Statutes Supplement, 2025; to change provisions relating to
- 3 part-time enrollment; and to repeal the original section.
- 4 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 79-2,136, Revised Statutes Supplement, 2025, is
2 amended to read:

3 79-2,136 (1) Each school board shall allow the part-time enrollment
4 of students, for all courses selected by the students, who are residents
5 of, or admitted to, the school district pursuant to subsection (1), (2),
6 or (11) of section 79-215 and who are also enrolled in a private,
7 denominational, or parochial school or in a school which elects pursuant
8 to section 79-1601 not to meet accreditation or approval requirements and
9 shall establish policies and procedures for such part-time enrollment.
10 Such policies and procedures may include provisions permitting the part-
11 time enrollment of such students who are not residents of, or admitted
12 to, such school districts to the extent permitted pursuant to section
13 79-215 and may require part-time students to follow school policies that
14 apply to other students at any time the part-time student is present on
15 school grounds or at a school-sponsored activity or athletic event. Part-
16 time enrollment shall not entitle a student to transportation or
17 transportation reimbursements pursuant to section 79-611.

18 (2) Each school board shall establish policies and procedures to
19 allow any student who is a resident of, or admitted to, the school
20 district pursuant to subsection (1), (2), or (11) of section 79-215 and
21 who is enrolled in a school which elects pursuant to section 79-1601 not
22 to meet accreditation or approval requirements to participate in any
23 extracurricular activities as defined in section 79-2,126, including, but
24 not limited to, interschool competitions, to the same extent and subject
25 to the same requirements, conditions, and procedures as a student
26 enrolled in a public school governed by such board, except that any
27 school which elects pursuant to section 79-1601 not to meet accreditation
28 or approval requirements shall set the standards for satisfactory
29 academic performance for a student from the school to participate in
30 extracurricular activities pursuant to this subsection and shall provide
31 assurances of compliance with such academic standards.

1 (3) School board policies and procedures adopted pursuant to
2 subsection (2) of this section;

3 (a) Shall ~~shall~~ require any student desiring to participate in
4 extracurricular activities regulated by an athletics or activities
5 association to which such school is a member ~~pursuant to such subsection~~
6 to be enrolled in five credit hours offered by the school district in any
7 semester in order to participate in such extracurricular activities, but
8 may not prohibit a student from enrolling in more than five credit
9 hours; ~~τ~~

10 (b) Shall not require any student desiring to participate in an
11 extracurricular activity that is not regulated by an athletics or
12 activities association to be enrolled in any minimum number of credit
13 hours offered by the school district in order to participate in such
14 extracurricular activity;

15 (c) Shall ~~shall~~ not allow any preference in the selection of a
16 student for participation in an extracurricular activity based on such
17 student's status as a full-time student in the school district; ~~τ~~ and

18 (d) May ~~(c) may~~ require any student participating in extracurricular
19 activities pursuant to such subsection to follow school policies that
20 apply to other students when present on school grounds or at a school-
21 sponsored activity or athletic event.

22 (4) Participation in extracurricular activities pursuant to
23 subsection (2) of this section shall not entitle a student to
24 transportation, except to and from practices and events to the same
25 extent as public school students participating in such activities, or
26 transportation reimbursement pursuant to section 79-611.

27 (5) ~~(4)~~ Nothing in this section shall be construed to exempt any
28 student from the compulsory attendance provisions of section 79-201 or
29 any statutes relating to habitual truancy.

30 **Sec. 2.** Original section 79-2,136, Revised Statutes Supplement,
31 2025, is repealed.